

Court No. - 3

Case :- WRIT - C No. - 14527 of 2017

Petitioner :- Uma Shankar Yadav

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Vatsala

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Mrs. Sangeeta Chandra,J.

Heard Mrs. Vatsala, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for respondents no. 1 & 2.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the demand notice dated 24.09.2016 of Rs.23,280/- and Rs.2,56,959/- issued in his name as well as in the name of his late mother.

Learned counsel for the petitioner contends that against the provisional assessment notice, the petitioner has filed an objection before the respondent no. 2, Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd, Vidyut Vitran Khand-3, Hathras but without deciding the same and without passing final order of assessment, the respondent no. 2 sent the impugned demand notice, which is totally arbitrary and illegal. Learned counsel for the petitioner further contends that the mandatory provisions of Section 126(3) of the Electricity Act, 2003 has not been followed in the present case.

In reply, learned counsel for the respondent Vidyut Vitran Nigam has tried to justify the impugned demand notice.

From a perusal of the record, we find that the provisional assessment notice issued to the petitioner and his late mother does not give the basis on which they were assessed to pay Rs.23,280/- and Rs.2,56,959/-. This Court in the case of **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ, 660 (DB)** has considered the provisions of the U.P. Electricity Supply Code, 2005 to be followed for assessment in case of theft of electricity. One of the essential requirement is that provisional notice should invite objections and also indicate a date and time for hearing of the consumer. The procedure adopted by the respondents in making demand notice is *de-hors* the provisions of the U.P. Electricity Supply Code, 2005 and is in gross violation of clause 6.8(b) of the said Code and, thus, the impugned demand notice issued against the petitioner and his late mother cannot be sustained.

Consequently, the writ petition is allowed. The impugned demand notice dated 24.09.2016 issued by the respondent no. 2 is hereby quashed. However, it shall be open to the respondent to proceed against the petitioner in accordance with law, and the procedure prescribed.

Order Date :- 10.4.2017

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